THERE IS A SENSE OF ORIENTALIST STEREOTYPING THAT SUFFUSES A LOT OF COMMENTARY AND WRITING ON INDIA

Everyone opposes sedition when they are in the Opposition, and everyone is happy to use it once they are in power

TRIPURDAMAN SINGH
Historian and Author



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COGNITIVE DISSONANCE

Any reform in Muslim personal laws and the implementation of a uniform civil code (UCC) does not indicate a descent into majoritarianism, says historian and author Tripurdaman Singh. Indeed, the idea of democracy backsliding is a misnomer in the Indian context, he says, for it misunderstands the historical context in which our democracy was born, and the constitutional/ institutional structure on which it is premised.

As for the UCC, "it doesn't reek of majoritarianism at all. In fact, (it is) the opposite," Singh said, adding that, generally, when consequential steps for reform were taken, they had been justified by reference to the directive principles of state policy. "The idea (was) that these were in effect guidelines based on which the governance of the country was to be conducted. So, there was an idea, and it was very much put into the Constitution in the form of directive principles, that one day we would have (a) universal civil law," he added.

"We have a Constitution that is social revolutionary in nature. It hands to the State vast powers to intervene in the social domain, to regulate social relationships, and that was because India's founding figures B.R. Ambedkar and Jawaharlal Nehru thought that Indian society lacked the capacity for social reform in and of itself," Singh said. That is why the State armed itself with vast coercive powers, intervened heavily in the social domain to reform Hindu laws, to open up temples, and address the question of caste discrimination. "So, if you have that kind of logic driving the constitutional schemata, to say that somehow one section of the population can be immune to it...to my mind, it smacks of cognitive dissonance," Singh said.

Replying to a question on the West misunderstanding events in India, Singh said this was one part of the question. "The underside of it is, why can't India put forward its point in a way that can change the current thinking?" ■

KEY TAKEAWAYS

- **India is by design an executive-heavy democracy for a variety of historical reasons. The executive is very much in the driving seat of the constitutional schemata. So, it is not surprising that the judiciary has shied away from challenging the executive beyond a point**
- **The arena for free speech in India has always been [subject] to the capriciousness of the executive.... Now, you have a situation where someone, the State, has the power to squeeze that arena whenever it wants**



"THE WEST MUST SPEND THE TIME TO COME AND SEE INDIA AND UNDERSTAND IT BETTER, RATHER THAN JUDGING IT FROM THE MEDIA"

ASHA JADEJA MOTWANI
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